Non-judicial stamp paper of Rs. 2,000 · Registration No. BNG-IND-2018-04417 (specimen)

LEAVE AND LICENSE AGREEMENT

Executed at Bengaluru on this 14th day of June 2018

PARTIES

This Leave and License Agreement is made between **Mr. Suresh Gowda**, residing at 77, 4th Cross, Domlur Layout, Bengaluru 560071 (hereinafter called the "**Licensor**") of the ONE PART;

AND **Kettle & Crumb Cafes Private Limited**, a company incorporated under the Companies Act, 2013, having its registered office at 3rd Floor, 21 Residency Road, Bengaluru 560025, represented by its authorised signatory Ms. Anita Rao (hereinafter called the "**Licensee**") of the OTHER PART.

1. PREMISES

1.1 The Licensor is the absolute owner of the commercial premises on the Ground Floor of No. 482, 12th Main Road, HAL 2nd Stage, Indiranagar, Bengaluru 560008, admeasuring approximately 1,450 (one thousand four hundred and fifty) square feet of super built-up area (the "**Premises**"), more fully described in the Schedule hereto.

1.2 The Licensee shall use the Premises only for the purpose of running a cafe and bakery outlet and for no other purpose.

2. TERM

2.1 The license is granted for a period of nine (9) years commencing from **1st July 2018** (the "**Commencement Date**") and ending on **30th June 2027** (both days inclusive) (the "**Term**").

2.2 The Licensee shall be entitled to a rent-free fit-out period of forty-five (45) days prior to the Commencement Date.

3. LICENSE FEE

3.1 The Licensee shall pay to the Licensor a monthly license fee of **Rs. 1,80,000/- (Rupees One Lakh Eighty Thousand only)** for the Premises, exclusive of Goods and

Services Tax.

3.2 The license fee shall be payable in advance on or before the **7th (seventh) day** of each English calendar month by bank transfer to the account designated by the Licensor.

3.3 Goods and Services Tax at the rate of **eighteen percent (18%)**, or such rate as may be notified from time to time, shall be paid by the Licensee in addition to the license fee and the maintenance charges.

4. ESCALATION

4.1 The license fee shall stand increased by **fifteen percent (15%) on the last paid license fee at the end of every thirty-six (36) months** from the Commencement Date, for the entire Term including any renewal.

5. SECURITY DEPOSIT

5.1 The Licensee has paid to the Licensor an interest-free refundable security deposit of **Rs. 10,80,000/- (Rupees Ten Lakh Eighty Thousand only)**, equivalent to six (6) months' license fee, which shall be refunded within thirty (30) days of the Licensee handing over vacant possession, after deducting any lawful dues.

6. MAINTENANCE

6.1 In addition to the license fee, the Licensee shall pay common area maintenance charges of **Rs. 30,000/- (Rupees Thirty Thousand only) per month** towards security, housekeeping, common electricity and upkeep of common areas.

7. LOCK-IN PERIOD

7.1 The parties agree to a lock-in period of **thirty-six (36) months** from the Commencement Date, during which neither party shall terminate this Agreement. Should the Licensee vacate the Premises during the lock-in period, the Licensee shall be liable to pay the license fee for the unexpired portion of the lock-in period.

8. TERMINATION AND NOTICE

8.1 After the expiry of the lock-in period, either party may terminate this Agreement by giving the other party not less than **three (3) months' prior notice in writing**.

8.2 Upon expiry or earlier termination, the Licensee shall hand over vacant and peaceful possession of the Premises in the same condition as at the Commencement Date, normal wear and tear excepted.

9. RENEWAL

9.1 The Licensee shall have an option to renew this license for a further period of **five (5) years** on the same terms and conditions, save and except the license fee, which shall be the last paid license fee escalated by fifteen percent (15%), provided the Licensee gives written notice of its intention to renew **not less than six (6) months before the expiry of the Term**.

9.2 If no such notice is received within the said period, the option to renew shall lapse and the Licensor shall be free to license the Premises to any third party.

10. SUB-LICENSING AND SIGNAGE

10.1 The Licensee shall not sub-license, assign or part with possession of the Premises or any part thereof without the prior written consent of the Licensor.

10.2 The Licensee may install its brand signage on the front facade of the Premises at its own cost, subject to applicable municipal approvals.

11. REPAIRS

11.1 Structural repairs shall be the responsibility of the Licensor. Day-to-day and minor repairs inside the Premises shall be carried out by the Licensee at its own cost.

12. JURISDICTION

12.1 This Agreement shall be governed by the laws of India and the courts at Bengaluru alone shall have jurisdiction.

LICENSOR Mr. Suresh Gowda	LICENSEE For Kettle & Crumb Cafes Pvt. Ltd. Authorised Signatory

SPECIMEN DOCUMENT FOR SOFTWARE DEMONSTRATION. All names, addresses and amounts are fictional.